

**Sample: STATEMENT OF WORK
SOLID WASTE RECYCLING COLLECTION
MATHER/MCCLELLAN/SONORA**

1. **STATEMENT OF WORK:** The contractor shall provide sufficient number of storage containers and other equipment (e.g. pallets) for government use in storing of solid waste and recyclable materials prior to removal of existing containers by the contracting officer (CO). Removal to be accomplished from:

- **Sacramento VAMC, 10535 Hospital Way, Mather, CA 95655**
- **McClellan VA Clinic, 5342 Dudley Blvd, McClellan Park, CA 95652**
- **Sonora VA Clinic, 13663 Mono Way, Sonora, CA 95370**
- **Stockton VAMC, 7777 Freedom Rd, French Camp, CA 95231**

2. **DISPOSAL AND SANITATION REQUIREMENTS:** Contractor shall assume full responsibility for compliance with all Federal, State, County and City laws, rules and regulations governing collection and disposal of solid waste and recyclable materials, in accordance with this statement of work:

3. The contractor shall be responsible for delivery of the containers and any necessary equipment at the start of the contract and as required (in the event quantities of waste materials increase) during the term of the contract, and as designated by the CO. The containers shall be fire-retardant and approved by the CO or Contracting Officer's Representative (COR) prior to placement at Government facility. Containers shall be delivered to and placed in the areas designated or directed by the COR. The contractor shall be responsible for the removal of containers at accomplishment or termination of the contract.

4. The contractor shall maintain the furnished containers in a clean and sanitary condition at ALL times. Contractor owned metal compactor containers shall be steam-cleaned once a month prior to returning the container to VA medical facility after disposal. The area immediately surrounding the containers shall be maintained in a clean, orderly and sanitary condition. Particular attention shall be paid to the prompt clean-up of oil and/or grease spills. Either generated from the vehicles(s) used to haul containers or because of containers leakage. The containers shall be kept in good repair: metal containers shall be painted when warranted (i.e. appearance of rust spots, stains excessive chipped areas, etc.). They shall be kept free of sharp edges and protrusions that could cause injury. Lids are to be maintained in operating condition.

5. If during the contract period, VA determines that the condition of any equipment supplies by the contractor constitutes a hazard to the health, safety or welfare of VA employees, patients, or the general community, the contractor shall, immediately upon receiving notice of such determination, by the CO or COR, remove the equipment from the VA installation and shall immediately replace it with equipment which is approve by the VA facility.

5.a. The VA may need unscheduled pull's or additional pulls. If the cost to do so is 10% more than the contract price VA will modify the contract to meet the needs.

6. The contractor shall provide a WEIGHT TICKET for each pickup, certifying the number of containers (s) and types of waste removed from the VA facility for transport and destruction. This weight ticket will be provided to the COR for each weekly pick up service. The contractor shall also

provide a spreadsheet report to the COR monthly by email. The spreadsheet format shall be approved by the COR. At a minimum, it will show for each container; the site, size of container, types of waste, weight per container-pick-up, pick-up charge, landfill disposal charge, number of pick-ups, and total tons/month. This data shall be listed separately for each container. The report shall also provide total weights for solid waste disposed at a landfill and total weights of recyclables processed at other sites. The report shall use “drop-down lists” so that the data can be easily sorted. This report shall also have separate “sheets” for each month and a summary sheet for the fiscal year. Upon request from the COR, these reports shall also be sent to other VA employees.

7. LICENSES AND PERMITS: Contractor shall provide copies of all regulatory-required licenses and permits without costs to the Government for vehicles, operators and labor to remove bulk (container refuse in accordance and compliance with federal, state, municipal and local regulations, if requested.

8. Contractor shall observe all federal, state and local laws, regulations and procedures relative to the collection, transport, handling, storage, disposal; and residue disposal when providing waste removal services under the terms of this contract.

9. TYPES OF WASTE COVERED: The following listing specifies the most common types of waste, which may be disposed of under the terms of this contract: Government reserves the right to identify other types of waste to be disposed of under the terms of the contract.

- Standard solid waste (trash)
- Construction debris,.
- Mixed recyclables (metal, plastic, wood, paper and cardboard.
- Mattresses and beddings
- Landscaping debris: including grass clippings, branches, leaves, etc.

10. TYPES OF WASTE NOT COVERED: The following listing specifies the most common types of waste not covered by the terms of this contract: the Government reserves the right to identify other types of waste not covered by the terms of this contract.

- Regulated medical waste
- Radioactive waste
- Hazardous waste, including universal waste
- Sewerage.

11. ALTERNATE METHODS OF DISPOSAL: The Government reserves the right to dispose of any or all materials listed in the terms of this contract by alternate means, including recycling, composting, salvaging, etc. And to effect the removal of any or all materials listed in the terms of this contract by alternate means, including sale, gift, or self—delivery to a disposal, recycling or reconditioning site. Only such materials designated by the COR as being subject to the terms and conditions of this contract shall be removed by the contractor for fee.

12. HANDLING AND LOADING OF VEHICLES: Contractor's employees shall remove all containers from the established collection sites. All containers shall be handled, moved, and placed in contractor's vehicles in such a manner that the structural integrity of the container is maintained, waste is properly contained, and environmental contamination is prevented. The contractor shall reimburse the Government for any damage to Government property caused by removal operations of the contractor or his / her agent. In accordance with Federal Acquisition Regulation (FAR) 52.246-

25 incorporated by reference in Section CD, the contractor shall be liable for loss of or damage to the property of the Government when caused by the contractor for services performed under this contract.

12.1. Any mishaps involving vehicle used to transport waste shall be reported prior to contractor leaving station to COR, contracting Officer or Security Officer.

12.2. Contractor at no time shall leave vehicle in a position that could endanger the traffic: if it should be left unattended, hazard signs or road flares will be placed in front and back of the vehicle for traffic awareness.

12.3. Contractor drivers shall obey all the traffic rules within the Government property: i.e.: speed limits, one way, stop signs, loading zones, etc.

13. DISPOSAL FACILITIES: Contractor shall certify that facilities used for the disposal of waste under the terms of this contract are operated in compliance with and do comply with all federal, state and local regulations which govern the disposal of waste and disposal of waste and the operation of disposal facilities. Contractor shall certify that landfills, etc., used for the disposal of waste under the terms of this contract are operated as required by law, for the disposal of the type, or types, of waste being disposed and for the packaging employed. Contractor's disposal facilities, and all facilities used by the contractor, to store, transport, transfer and dispose of waste under the terms of this contract shall be identified by name and location to VA and shall be available for inspection by authorized representatives of the VA upon twenty (24) hour notice, rented leased, sub-contracted and other non-contracted and other non- contractor owned facilities which are used to provide service under the terms of this contract must also be identify by name and location , and must be available for inspection by authorized representatives of VA upon twenty—four (24) hour notice provided to the contractor.

14. SCHEDULES: Waste removal from the facilities will be accomplished Monday through Friday morning hours. The contractor shall remove all waste, which is designated by the facilities for removal each time service is provided under the terms of the contract: the contractor for pickup shall no designated shippable waste at a later time or date. The contractor shall immediately notify the contracting Officer and or COR of any delay, which may prevent timely removal of all accumulated waste within the limits set forth in the terms of this contract. Contractor shall respond to calls for emergency removal of waste within eight (8) hours of notification by the usable at all times, (e.g. answering service authorized to accept emergency service calls and contract contractor) such instructions shall be evoked in any situation where VA facilities determined that an emergency exists. Failure of the contractor to order pickup by other means, all costs to the VA incurred by the failure of the contractor to perform pickups as required will be deducted from amounts owed to the contractor by the Government. Failure to conduct regular schedule pickups will result in violation of the Department of the Healthcare and OSHA requirements.

RECORDS MANAGEMENT OBLIGATIONS

A. Applicability

This clause applies to all Contractors whose employees create, work with, or otherwise handle Federal records, as defined in Section B, regardless of the medium in which the record exists.

B. Definitions

“Federal record” as defined in 44 U.S.C. § 3301, includes all recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law or in connection with the

transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them.

The term Federal record:

1. includes VHA records.
2. does not include personal materials.
3. applies to records created, received, or maintained by Contractors pursuant to their VHA contract.
4. may include deliverables and documentation associated with deliverables.

C. Requirements

1. Contractor shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chs. 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.
2. In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.
3. In accordance with 36 CFR 1222.32, the Contractor shall maintain all records created for Government use or created in the course of performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.
4. VHA and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of VHA or destroyed except in accordance with the provisions of the agency records schedules and with the written concurrence of the Head of the Contracting Activity. Willful and unlawful destruction, damage, or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, the Contractor must report to VHA. The agency must report promptly to NARA in accordance with 36 CFR 1230.
5. The Contractor shall immediately notify the appropriate Contracting Officer upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records, or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the [contract vehicle]. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records, and/or equipment is properly protected. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the Head of the Contracting Activity. When information, data, documentary material, records, and/or equipment is no longer required, it shall be returned to VHA control or the Contractor must hold it until otherwise directed. Items returned

to the Government shall be hand-carried, mailed, emailed, or securely electronically transmitted to the Contracting Officer or address prescribed in the [contract vehicle]. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (4).

6. The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material, and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and VHA guidance for protecting sensitive, proprietary information, classified, and controlled unclassified information.
7. The Contractor shall only use Government IT equipment for purposes specifically tied to or authorized by the contract and in accordance with VHA policy.
8. The Contractor shall not create or maintain any records containing any non-public VHA information that is not specifically tied to or authorized by the contract.
9. The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.
10. The VHA owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which VHA shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20.
11. Training. All Contractor employees assigned to this contract who create, work with or otherwise handle records are required to take VHA-provided records management training. The Contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.

[Note: To the extent an agency requires contractors to complete records management training, the agency must provide the training to the contractor.]

D. Flow down of requirements to subcontractors

1. The Contractor shall incorporate the substance of this clause, its terms, and requirements including this paragraph, in all subcontracts under this [contract vehicle], and require written subcontractor acknowledgment of same.
2. Violation by a subcontractor of any provision set forth in this clause will be attributed to the Contractor.

END OF STATEMENT

